

NAME: SONAM KUMARI

ROLL NO: 2414500802

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Q1.

Evaluate the significance of each essential element in ensuring the enforceability of a contract under the Indian Contract Act, 1872.

A contract gains legal force only when it meets the essential requirements outlined in the Indian Contract Act, 1872. These elements ensure that the agreement is clear, fair, and understood by all parties. If any of these core components are missing, the agreement may become void, voidable, or simply unenforceable. Each requirement protects the interests of the parties involved and helps maintain order in commercial as well as personal dealings.

1. Offer and Acceptance

Every valid contract begins with a lawful offer made by one party and an unconditional acceptance by the other. Both sides must agree on the exact same terms—a “meeting of minds.”

Significance:

This element ensures that both parties understand the agreement in the same way, preventing confusion or disputes. Without definite terms and proper acceptance, a contract cannot exist.

Example:

If A offers to sell his car to B for ₹2,00,000 and B agrees, a valid agreement is formed. But if B replies with “I will buy it for ₹1,80,000,” it becomes a counteroffer, not acceptance.

2. Lawful Consideration

Consideration means something of value exchanged between the parties—money, goods, services, or even a promise.

Significance:

Consideration is what separates a binding contract from a mere gift. Without it, the agreement is generally void, unless it falls under legally recognized exceptions.

Example:

If A agrees to pay B ₹10,000 for painting his house, B’s service and A’s payment together form valid consideration.

3. Capacity to Contract

The parties entering the agreement must be legally competent. They should be adults, mentally sound, and not disqualified by law from making contracts.

Significance:

This protects minors and mentally unstable individuals from entering unfair or harmful agreements.

Example:

As ruled in *Mohori Bibee v. Dharmodas Ghose*, a contract with a minor is void from the very beginning.

4. Free Consent

Consent must be genuine and not influenced by coercion, fraud, undue influence, misrepresentation, or mistake.

Significance:

This ensures that both parties willingly agree to the contract. If consent is obtained through pressure or deception, the contract becomes voidable.

Example:

If A forces B to sign a property sale agreement, B can later void the contract on the grounds of coercion.

5. Lawful Object and Purpose

The aim and content of the contract must be legal and must not violate public policy or moral standards.

Significance:

This requirement prevents people from using contracts for unlawful or immoral activities.

Example:

Any agreement to smuggle goods or divide stolen property is illegal and cannot be enforced in court.

6. Certainty and Possibility of Performance

The contract's terms must be clearly defined, and performance must be physically and legally possible.

Significance:

Courts cannot enforce vague or impossible agreements.

Example:

A promise such as "I will pay you if it rains gold tomorrow" is void because the act is impossible.

7. Intention to Create Legal Relations

Both parties must intend their agreement to have legal consequences.

Significance:

This requirement distinguishes casual or domestic arrangements from enforceable contracts.

Example:

A plan among friends to go on a trip is not a contract because there is no intention to create legal obligations.

8. Proper Formalities (When Mandated)

Certain agreements must be written, registered, or stamped as per legal requirements—such as real estate contracts or long-term lease deeds.

Significance:

Following these formalities avoids disputes and ensures that the agreement is legally recognized.

Q2)

Discuss the different modes of dissolution of a partnership firm under the Indian Partnership Act, 1932.

The **Indian Partnership Act, 1932** outlines several ways in which a partnership firm can be brought to an end. Dissolution refers to the complete termination of the partnership relationship among all partners, meaning the business stops operating and the accounts must be settled. The Act recognizes that a firm may dissolve voluntarily, automatically under certain events, or through a court order. Each method ensures that partners have a fair and lawful way to end their association when continuing the business becomes difficult or impossible.

1. Dissolution by Agreement (Section 40)

A partnership can be dissolved:

- When all partners willingly agree, or
- According to the terms mentioned in the partnership deed (such as dissolution after a fixed time or completion of a particular job).

Significance:

This is the simplest and most amicable method, as it relies on mutual consent.

Example:

Partners running a seasonal venture may close the firm once the season ends, as already specified in their partnership deed.

2. Compulsory Dissolution (Section 41)

Certain situations make dissolution unavoidable:

a) Illegality of the Business

If the business activity becomes unlawful due to a change in law, the firm must shut down.

Example:

If a particular chemical is banned by the government, a business dealing solely with that chemical must dissolve immediately.

b) Insolvency of All or All but One Partner

If all partners—or all except one—are declared insolvent, the partnership automatically comes to an end.

Significance:

A firm cannot legally continue if there are no solvent partners to manage its affairs.

3. Dissolution on the Happening of Certain Contingencies (Section 42)

Some events lead to automatic dissolution unless the partnership agreement states otherwise:

a) Expiry of a Fixed Term

When the partnership was set up for a particular duration.

b) Completion of a Specific Project

Commonly seen in project-based collaborations.

c) Death of a Partner

Unless the remaining partners have agreed in advance to carry on.

d) Insolvency of a Partner

Continuation becomes uncertain unless allowed by the deed.

Example:

A partnership created solely to construct a bridge dissolves naturally once the construction is completed.

4. Dissolution by Notice in a Partnership at Will (Section 43)

In a **partnership at will**, any partner can end the firm simply by giving written notice to the other partners.

Significance:

It allows partners complete freedom—no one can be forced to continue against their will.

Example:

If one partner disagrees with how the business is being run, they can dissolve the firm by issuing written notice.

5. Dissolution by the Court (Section 44)

A partner may request the court to dissolve the firm if certain serious issues arise:

a) Mental Unsoundness

If a partner becomes insane or mentally unstable.

b) Permanent Incapacity

A long-term illness or disability that prevents a partner from performing duties.

c) Misconduct

Fraud, illegal activities, or actions that harm the firm's reputation.

d) Persistent Breach of Agreement

Repeated violation of partnership terms, making operations difficult.

e) Unauthorized Transfer of Interest

If a partner transfers their share to an outsider without consent.

f) Continuous Losses

When the business keeps incurring losses and has no chance of recovery.

Example:

If a partner repeatedly commits fraud and damages the firm's goodwill, the remaining partners may approach the court for dissolution.

Q3)

Assess the importance of each essential element in determining the validity of a contract of sale under the Sale of Goods Act, 1930.

A contract of sale, as defined under the *Sale of Goods Act, 1930*, is a specific kind of contract in which property in goods is transferred or agreed to be transferred from the seller to the buyer for a price. Although it is a specialised commercial agreement, its validity still depends on the fundamental elements required under the Indian Contract Act, 1872. Along with these, the Sale of Goods Act adds certain goods-related conditions. Each essential element plays a unique role in ensuring that the transaction is lawful, transparent, and enforceable.

1. Two Parties – A Buyer and a Seller

A contract of sale must involve two different parties—one selling and the other buying.

Importance:

This distinguishes a sale from other arrangements like gifts or transfers within the same person. Without two independent parties, ownership cannot shift, making the agreement invalid.

2. Goods Must Be the Subject Matter

The Act strictly requires that the contract must deal with “goods,” meaning movable property.

Importance:

Without clearly identifiable goods, the contract lacks a core subject, making enforcement impossible. Additionally, goods must either exist at the time of the contract or be capable of being manufactured or acquired later (future goods). This ensures certainty and prevents disputes.

3. Transfer of Property

A valid contract must either transfer ownership immediately (sale) or create an obligation to transfer in the future (agreement to sell).

Importance:

This element determines rights, liabilities, and risk in goods. For example, once ownership passes, risk also shifts, even if delivery is pending. Without clarity on transfer of property, disputes over damage or loss may arise.

4. Price or Consideration in Money

The consideration for a sale must be monetary. Barter or exchange does not qualify as a “sale.”

Importance:

Price gives the contract its commercial character. It also helps courts determine whether it is a sale, exchange, or gift. Absence of a price makes the contract void as a contract of sale.

5. Essential Elements of a Valid Contract

All requirements of a valid contract—free consent, capacity of parties, lawful object, and lawful consideration—apply.

Importance:

These ensure that the sale agreement is made voluntarily, with legal competence, and for a lawful purpose. If consent is obtained through coercion or the object is illegal, the contract becomes void or voidable.

6. Possibility of Delivery

The seller must be capable of delivering the goods, physically or constructively.

Importance:

If delivery is impossible (for example, destroyed goods), the sale cannot be completed. This protects buyers from fraudulent or misleading agreements.

7. Certainty of Terms

The agreement must clearly specify quality, quantity, price, and goods.

Importance:

Uncertainty leads to disputes and may render the contract unenforceable. Clear terms ensure smooth execution and protect both parties.

Q4)

Illustrate how companies in India implement CSR activities in compliance with the provisions of the Companies Act, 2013.

The **Companies Act, 2013** made Corporate Social Responsibility (CSR) a mandatory responsibility for certain companies in India. According to **Section 135**, any company that meets **one or more** of the following financial thresholds must spend **at least 2% of its average net profits of the previous three financial years** on CSR work:

- Net worth of ₹500 crore or more,
- Turnover of ₹1,000 crore or more, or
- Net profit of ₹5 crore or more.

To meet this legal requirement, companies need to follow a structured process which includes forming a CSR committee, drafting a CSR policy, selecting appropriate projects, implementing them effectively, monitoring progress, and reporting outcomes. Over time, several major Indian companies have built strong CSR systems that not only comply with the law but also contribute meaningfully to social and environmental development.

1. Setting Up a CSR Committee

Companies begin by creating a **CSR Committee** within the Board. This committee generally has **three directors**, and at least one of them must be an independent director.

Example:

Tata Steel has a dedicated CSR committee consisting of senior board members who guide, plan, and oversee all CSR initiatives to ensure compliance with statutory guidelines.

2. Framing a CSR Policy

The CSR committee prepares a **CSR policy** that describes the company's focus areas, the type of projects it will support, the funds it will allocate, and the approach it will take for implementation. These activities must fall within the areas mentioned in **Schedule VII**, such as education, healthcare, environmental conservation, women empowerment, and rural development.

Example:

Infosys Foundation follows a well-defined CSR policy with priorities in healthcare, education, rural upliftment, and promotion of culture and the arts.

3. Selecting CSR Projects Based on Schedule VII

Companies choose CSR programmes that align with both national development goals and local community needs.

Common CSR Themes Include:

- Promoting education and literacy
- Healthcare, nutrition, and sanitation
- Environmental conservation
- Skill development and vocational training
- Rural infrastructure and development
- Welfare of women, children, and vulnerable groups

Example:

Reliance Industries operates the “Education and Sports for All” initiative through Reliance Foundation, helping rural students through digital learning tools.

4. Executing CSR Activities

CSR initiatives may be implemented through:

- In-house CSR departments
- Registered NGOs, trusts, and charitable societies
- Government-approved schemes
- Public–private partnerships

Examples of CSR Execution by Indian Companies:

a) Tata Group

Implements programmes through **Tata Trusts**, focusing on tribal welfare, cancer care, skill-building, and water management.

b) Wipro

Runs **Wipro Cares**, supporting disaster relief, primary healthcare, and educational programmes for underprivileged children.

c) ITC Ltd.

Operates **e-Choupal**, a digital network that helps lakhs of farmers improve productivity and get fair prices.

d) Asian Paints

Supports projects in rural water conservation, sanitation, and community development around its factory areas.

5. Monitoring and Evaluation

CSR projects are regularly reviewed to ensure proper fund utilisation and meaningful outcomes. The CSR Committee evaluates progress reports and impact assessments.

Example:

HCL Foundation employs third-party evaluators to measure the effectiveness of its programmes in education, skill-building, and women empowerment.

6. CSR Reporting and Transparency

Companies must provide a detailed CSR report in their annual financial statements. This report includes:

- Total CSR expenditure
- Specific activities undertaken
- Reasons for any unspent CSR funds

These disclosures help maintain transparency and public accountability.

Example:

Mahindra & Mahindra's annual CSR report highlights initiatives such as **Project Nanhi Kali** (supporting education for girls) and environmental conservation projects.

Q5)

Discuss the rights of consumers under the Consumer Protection Act, 2019.

The **Consumer Protection Act, 2019** is a modern, updated law aimed at protecting the rights and interests of consumers in India. It replaced the older 1986 legislation and brought in stronger provisions because today's consumers deal with e-commerce platforms, online payments, fast delivery systems, and international brands—areas that require stricter and clearer legal protection.

To prevent unfair treatment and exploitation, the Act grants consumers **six fundamental rights**, each designed to help individuals make informed decisions, seek remedies, and hold businesses accountable for malpractice.

1. Right to Safety

Consumers are entitled to protection from products and services that may endanger their health, life, or property. This covers defective items, contaminated food, unsafe gadgets, and risky services.

Why it matters:

It compels manufacturers and service providers to follow safety standards and conduct proper quality checks.

Example:

If a pressure cooker explodes because of a manufacturing defect, the affected consumer can claim compensation under this right.

2. Right to Be Informed

Consumers must receive complete and correct details about what they are buying—such as price, ingredients, expiry date, usage instructions, side effects, weight, warranty conditions, and more.

Why it matters:

It protects consumers from false advertisements, hidden charges, and misleading claims.

Example:

Food items must display nutrition charts, expiry dates, and allergen warnings clearly on the label.

3. Right to Choose

Consumers should have the freedom to select from a wide variety of goods and services without being pressured or forced into purchasing a particular product.

Why it matters:

It encourages healthy competition and prevents restrictive trade practices.

Example:

A bank cannot compel a customer to buy an insurance policy as a precondition for sanctioning a loan.

4. Right to Be Heard

Consumers have the right to express their complaints or concerns before appropriate authorities. Consumer courts, government agencies, and company grievance cells must listen and take corrective steps.

Why it matters:

It ensures that consumer feedback and grievances are acknowledged and acted upon.

Example:

Companies are required to maintain helplines, email support systems, and proper grievance-redressal channels.

5. Right to Seek Redressal

Consumers can seek compensation or legal remedies in cases of defective goods, poor services, unfair pricing, or deceptive practices.

A major improvement under the 2019 Act is that consumers can file complaints **from their place of residence**, making the process easier and more accessible.

Example:

If an online store delivers a damaged smartphone, the buyer has the right to ask for a replacement, refund, or compensation.

6. Right to Consumer Education

Consumers must have access to information about their rights, legal remedies, and the correct way to file complaints.

Why it matters:

It prevents exploitation, especially for people who may not be aware of their rights—such as rural consumers or first-time buyers.

Example:

Government initiatives like “**Jago Grahak Jago**” educate people about fraudulent schemes and misleading advertisements.

Additional Strengthening Measures Under the 2019 Act**a) Central Consumer Protection Authority (CCPA)**

A powerful authority with the ability to recall unsafe products, impose penalties, and act against misleading advertisements.

b) E-commerce Regulations

Online platforms must display seller information clearly, mention return and refund policies, and appoint grievance officers.

c) Product Liability

Manufacturers, sellers, and service providers can be held responsible if a defective product or poor-quality service harms the consumer.

Q6)**Explain the concept of a patent and describe the procedure for obtaining one under the Indian Patent Act, 1970.**

A **patent** is a legal right granted by the government that gives an inventor exclusive control over a new invention. This right allows the inventor to make, use, sell, or license the invention for a fixed duration—generally **20 years from the date of filing**. In exchange for this monopoly, the inventor must publicly disclose the complete technical details of the invention so that others can learn from it and advance further innovations. Patents play a crucial role in encouraging technological growth by rewarding creativity, preventing unauthorized use, and helping inventors earn commercial benefits from their work.

Under the **Indian Patent Act, 1970**, an invention is patentable only when it meets three essential conditions:

- **Novelty** – The invention must be new and not previously published.
- **Inventive Step** – It must show technical advancement or economic significance compared to existing knowledge.
- **Industrial Applicability** – The invention should be capable of being manufactured or used in industry.

Procedure for Obtaining a Patent in India

The patenting process is carefully structured to ensure that only genuine, innovative, and useful inventions receive protection. The major steps involved are:

1. Patent Search (Optional but Highly Recommended)

Before filing, inventors usually carry out a patent search to verify that their idea is original. This helps avoid spending time and money on inventions that already exist.

Example:

A biotech company developing a new vaccine might check both Indian and global patent databases to confirm its formula has not been disclosed earlier.

2. Filing the Patent Application

The inventor submits a patent application to the Indian Patent Office. The filing can be done in two ways:

- **Provisional Application:** Filed when the invention is still being developed; helps secure an early filing date.
- **Complete Specification:** Contains the full technical description, claims, drawings, and abstract.

Significance:

The patent system in India follows the **first-to-file** rule, making the filing date extremely important.

3. Publication of the Application

Applications are normally published **18 months** after filing. If needed, the inventor may request early publication.

Effect of publication:

Once published, the applicant receives certain provisional rights—others cannot freely copy the invention—though full legal rights are granted only after the patent is officially approved.

4. Request for Examination (RFE)

In India, patent examination does not occur automatically. The applicant must file an RFE, after which the application is assigned to an examiner.

5. Examination and First Examination Report (FER)

The examiner evaluates the invention on several factors:

- Novelty and originality
- Presence of an inventive step
- Industrial usefulness
- Clarity and scope of claims
- Compliance with legal provisions

The Patent Office then issues a **First Examination Report (FER)**, listing objections or required changes.

6. Response to FER

The applicant must respond to the FER within the permitted time frame. This may involve:

- Modifying claims

- Providing clarifications
- Submitting technical documents or additional data

Example:

If a machine design is unclear, the inventor may submit more detailed blueprints or diagrams to satisfy the examiner.

7. Hearing (If Needed)

If certain objections still remain, the Patent Office may call the applicant for a hearing. Here, the inventor or patent attorney explains how the invention meets all patentability requirements.

8. Grant of Patent

Once all issues are resolved, the Patent Office grants the patent and publishes the grant in the **Patent Journal**.

9. Renewal Fees

A patent is valid for **20 years**, but the inventor must pay renewal fees every year starting from the **third year** to keep it in force.